

Tentative Rulings for September 17, 2026

Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2604020	SINDON VS MURIETTA 1, LLC	DEMURRER/MOTION TO STRIKE

Tentative Ruling: Special Demurrer overruled. General Demurrer Sustained as to both Causes of Action. Plaintiff granted leave to file amended complaint within 20 days. Motion to Strike is moot.

This is a premises liability action, filed February 17, 2026, by Plaintiff Darryl Sindon against Defendants Murietta 1, LLC and F & F Samarandayake, Inc. alleging two causes of action for negligence and premises liability arising from injuries sustained by stabbing by a third party.

Defendant Murrietta 1, LLC demurs to both causes of action in the Complaint on the grounds they fail to state facts sufficient to constitute a cause of action against it and/or they are uncertain. Murrietta asserts that the Complaint alleges that they owned, managed, maintained, operated, supervised, oversaw, secured and/or controlled the property, but fails to identify the third party, what relationship if any of the third party had to the subject premises or provide any facts of the circumstances surrounding the incident. Plaintiff does not specify any actual, claimed dangerous condition that caused him to be victim of the stabbing; nonetheless, he alleges on purported information and belief in legal conclusions that Moving Party “regularly inspected, supervised, and oversaw the SUBJECT PREMISES and that they were aware or should have been aware of the dangerous nature of the SUBJECT PREMISES” and that Moving Party had “actual or constructive knowledge of the unsafe conditions, as aforesaid, and performed acts that affirmatively contributed to the creation of these unsafe conditions” and that “there were multiple past violent, criminal incidents at or around the SUBJECT PREMISES and [Moving Party]...failed to take action.” Murrietta asserts that Plaintiff fails to identify any “incidents.” In sum, he pleads no facts to support any element of his causes of action.

In opposition, Plaintiff Sindon asserts that the demurrer should be overruled as he was a business invitee at a commercial premises owned and managed by Murrieta and the Complaint alleges that Defendant created, permitted and/or failed to remedy dangerous conditions that led to the attack including deficient crime prevention policies, inadequate proactive security, lack of guards and inadequate training and supervision of employees. Sindon asserts that Murrietta improperly demands that Plaintiff plead and prove every item of evidence supporting notice, foreseeability, breach, and causation before discovery has begun. At the pleading stage, Plaintiff need only allege ultimate facts sufficient to state a cause of action, not every evidentiary fact that may later support those allegations. Plaintiff has done so. Plaintiff alleges that Defendant failed to take reasonable measures under the circumstances, including through reasonable crime-prevention policies, proactive security, employee training, supervision, and other reasonable protective measures. The nature, burden, feasibility, and adequacy of particular measures are factual issues that cannot be conclusively resolved from the face of the Complaint. Lastly, Sindon asserts that the special demurrer fails for the independent reason that the Complaint is neither uncertain nor unintelligible. Defendant plainly understands Plaintiff’s theory of liability: that Defendant, as the

owner, operator, manager, and/or controller of the Subject Premises, failed to take reasonable measures to protect its invitees against foreseeable third-party criminal violence.

In reply, Murrietta asserts The Complaint seeks to hold Murrieta 1 liable for an unidentified third party's criminal attack without alleging the basic facts needed to state a claim. It does not identify the danger Murrieta 1 allegedly knew about, the security measure it should have taken, or how that measure would have prevented the stabbing. The Opposition does not address these omissions. Instead, it characterizes allegations of control, inadequate security, notice, and causation as "ultimate facts" and argues that the supporting facts may be obtained through discovery. Plaintiff cites no authority permitting that approach. A demurrer accepts properly pleaded facts, not legal conclusions. Murrietta asserts that although evidentiary details need not be pleaded, the Complaint must still allege facts sufficient to state each element of the claims. California courts require "fact pleading." This means the plaintiff must allege the ultimate facts that support every element of each legal claim, not just (as Plaintiff does herein) mere conclusions.

The Complaint alleges, in pertinent part, that on October 31, 2025, Plaintiff Sindon was an invitee and lawfully on the subject premises when he was violently attacked by a third party, in a reasonably foreseeable manner, sustaining multiple stab wounds. "Defendants" created, permitted and/or failed to remedy a dangerous environment and conditions that led to the incident, including lack of criminal prevention policies, proactive security, lack of guards and inadequate training and supervision of employees.

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into

account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) The Complaint is not uncertain.

1st Cause of Action for Negligence - The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) To impose a duty to hire guards or other similar security action, there must be “the requisite degree of foreseeability, which rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well-established policy in this state. [Citations.]” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 679, disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512.)

Here, the Complaint is devoid of any facts upon which it could be shown that there was the requisite degree of foreseeability, to create a duty to prevent a violent crime, such as the stabbing incident.

2nd Cause of Action for Premises Liability- The elements of a claim for premises liability are: 1) defendant was the owner, occupant or lessor of premises; 2) defendant was negligent in the use, maintenance or management of premises; and 3) negligence was a cause of injury, damage, loss or harm to plaintiff. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) Premises liability is a form of negligence. (*Id.*) The question of liability is whether, in the management of his property, the landowner has acted as a reasonable person under all the circumstances. (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 372.) An owner or possessor of premises who knows of, or by the exercise of reasonable care could discover a dangerous condition of property has a duty to exercise ordinary care either to make the condition reasonably safe or to give an adequate warning. (*Chance v. Lawry's, Inc.* (1962) 58 Cal.2d 368, 373.) An owner of property is “not the insurer of the visitor's personal safety.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.) In order to establish liability, the owner's actual or constructive knowledge of the dangerous condition is required. (*Id.*) Constructive knowledge may be established where the

“evidence suggests that the dangerous condition was present for a sufficient amount of time.” (*Id.*)

2.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR AARON JOHNSON

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR ARIANNA JOHNSON

Tentative Ruling: Hearing Required.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS MARKET	DEMURRER

Tentative Ruling: Special Demurrer for Uncertainty Sustained with 20 days leave to amend.

On March 25, 2023, Plaintiff Stephanie Orosco (“Plaintiff”) was a patron at Defendant Stater Bros. Market (“Stater Bros.”) in Lake Elsinore. As Plaintiff was walking towards the exit, she was followed and questioned by Defendant John Doe (“Doe”), a security guard for the subject premises. Plaintiff alleges Doe physically attacked and assaulted her with such force that she suffered injuries and damages. On February 28, 2025, Plaintiff filed her complaint alleging five causes of action: 1) assault (against Doe only); 2) battery (against Doe only); 3) intentional infliction of emotional distress (against Doe only); 4) negligence (against all Defendants); and 5) negligent hiring, supervision and retention (against Stater Bros. and Does 1-50).

On May 12, 2026, Plaintiff filed an Amendment to the Complaint naming Andrew Montano as Doe 2 (“Montano”).

Montano now demurs to the 4th and 5th causes of action on the ground each fails to state facts sufficient to constitute a claim against him. (C.C.P., § 430.10(e).) He also argues the entirety of the complaint is vague, uncertain, and unintelligible as to the things alleged and the theories of liability that Montano is being called upon to account for. (C.C.P. § 430.10(f).) Montano states he has been named in place of Doe 2, but the complaint attributes all alleged misconduct to a separate individual identified as “John Doe, a security guard.” It contains no factual allegations regarding Montano’s alleged personal liability whatsoever.

Plaintiff opposes and argues she has adequately alleged each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that

Plaintiff's damages as herein alleged were proximately caused by those Defendants, and once she substituted Montano for Doe 2, those allegations apply to him too. She argues discovery conducted after the filing of the Complaint has identified additional facts concerning Montano's personal involvement, demonstrating that any perceived pleading deficiency concerning his role can readily be cured by amendment.

In reply, Montano argues the opposition confirms the defects. Indeed, after the filing of the opposition, Plaintiff voluntarily dismissed John Doe and submitted a declaration asserting that Andrew Montano and John Doe are the same person. The complaint alleges intentional torts against John Doe with no facts against Doe 2, which Montano is named. If Plaintiff is now contending John Doe and Montano are the same, that theory is nowhere in the pleading currently before the court. Moreover, the opposition repeatedly relies on facts not appearing in the Complaint.

Demurrer Standard - A demurrer to a complaint may be general or special. A general demurrer challenges the legal sufficiency of the complaint on the ground it fails to state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) A general demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

A special demurrer challenges other defects in the complaint, including whether a pleading is uncertain. (C.C.P., § 430.10(f).) The term uncertain means "ambiguous and unintelligible." (*Id.*) A demurrer for uncertainty should be sustained if the complaint is drafted in such a manner that the defendant cannot reasonably respond, i.e., the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Merits - The only causes of action against Doe 2, who Montano has been named in place of, are the 4th and 5th causes of action. As to Does, the complaint alleges: "Plaintiff is informed and believes and thereon alleges that each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that Plaintiff's damages as herein alleged were proximately caused by those Defendants."

(Comp., ¶ 5.) She also alleges all Defendants are the agents, servants, and employees of their co-defendants. (*Id.* at ¶ 6.) She alleges “Defendants, and each of them, formed a special relationship between the security company and/or security guards and subject premises.” (*Id.* at ¶ 34.)

Despite these general conclusory allegations as to Doe 2, Plaintiff argues in opposition and subsequent filings that Montano is actually John Doe, not Doe 2, as he is currently alleged to be. This is not alleged in the present complaint and alters the legal landscape. Plaintiff’s representation in opposition that discovery revealed Montano was personally present and interacted with Plaintiff before she fell suggests a direct negligence theory may be viable if properly pled. The negligent hiring claim, by contrast, does not fit the facts as represented, Montano allegedly acted directly, not as a supervisor who negligently hired John Doe. If Montano *is* John Doe (as the recent dismissal suggests), then the 5th cause of action against Montano makes no sense against him at all. Moreover, the intentional torts were only alleged against John Doe, who was dismissed, and now Plaintiff contends Montano is actually John Doe, not Doe 2. Given the vague allegations and the inconsistent allegations and representations regarding Montano the demurrer for uncertainty is sustained.

5.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS	MOTION FOR SANCTIONS

Tentative Ruling: Motion Denied. Plaintiff’s Request for Sanctions Denied.

Stater Bros. now moves for sanctions under Code of Civil Procedure section 128.7, seeking dismissal of the entire action with prejudice and monetary sanctions against Plaintiff and her counsel. It contends Plaintiff’s claims are objectively frivolous for two independent reasons: (1) Plaintiff’s deposition testimony contradicts essential elements of her claims, and (2) her claims are barred as a matter of law by shopkeeper’s privilege.

Plaintiff opposes and argues Stater Bros. applies the wrong legal standard, treating the motion as if it were a summary judgment motion rather than a sanctions motion. Plaintiff contends her testimony reflects the traumatic nature of the incident and does not negate the factual basis for her claims. She contends that shopkeeper’s privilege is an affirmative defense involving factual questions about reasonableness and excessive force, not appropriate for resolution on a sanctions motion. Plaintiff requests \$5,600 in sanctions for opposing the motion.

In reply, Stater Bros. argues the opposition confirms why sanctions are warranted as the numerous admissions during discovery destroy the basis for her complaint. It argues there is no evidentiary support for her claims and the motion should be granted.

An attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P., §

128.7; *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619,623.)¹ Whether the paper or pleading is frivolous or improper is tested objectively. (*Bockrath v. Aldrich Chem. Co., Inc.* (1999) 21 Cal.App.4th 71, 82.) The sanctions process is usually commenced by party motion, although a court may issue an order to show cause *sua sponte*. (C.C.P., §§128.5(f)(1), 128.7(c)(2).)²

Under Code of Civil Procedure section 128.7, a court may impose sanctions for filing a pleading if the court concludes the pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168.) A claim is factually frivolous if it is “not well grounded in fact” and it is legally frivolous if it is “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (*Id.* at p. 167.) In either case, to obtain sanctions, the moving party must show the party’s conduct in asserting the claim was objectively unreasonable. (*Ibid.*) A claim is objectively unreasonable if “any reasonable attorney would agree that [it] is totally and completely without merit.” (*In re Marriage of Flaherty* (1982) 31 Cal.3d 637, 650; *Guillemin, supra*, at p. 168.) A court has broad discretion to impose sanctions if the moving party satisfies the elements of the sanction’s statute. (See *Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 421.)

The moving party must first serve the motion for sanctions on the offending party at least 21 days before filing it; this safe harbor provision allows the opposing party to withdraw or appropriately amend the “challenged paper, claim, defense, contention or denial.” (C.C.P., § 128.7(c)(1); *Barnes v. Department of Correction* (1999) 74 Cal.App.4th 126, 130; *Nutrition Distribution, LLC v. Southern SARMS, Inc.* (2018) 20 Cal.App.5th 117, 129 [regarding 2017 amendment to CCP § 128.5 to include safe harbor requirement].) At the end of the 21-day waiting period, if the pleading is not withdrawn, the moving party may file the motion. (C.C.P., § 128.7(c)(1); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-99; *Nutrition Distribution, LLC, supra*, 20 Cal.App.5th at 129-30.)

First, Stater Bros. counsel declares that states it served the proposed notice and motion on April 29, 2026. (Parmar Decl., ¶ 6, Exh. D.) However, the notice does not contain a hearing date nor is the attached proof of service executed. Although not argued in opposition, a notice served on the party against whom sanctions is sought must comply with all of the requirements of C.C.P., § 1010, including the time and place of the motion hearing. Otherwise, it does not satisfy the “safe harbor” requirement even if a second notice stating the time and place is served when the motion is filed. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538 [document served stating sanctions motion would be filed “on or after” specified date (more than 21 days later) did not

¹A party “presents” a pleading or paper if it *signs, files, submits or later advocates* the positions set forth in the original document. (CCP 128.7(b).) Thus, a continuing obligation is imposed. That is, a litigant’s obligations regarding the contents of papers are not measured solely as of the time the papers are filed with the court. The same certification applies when the litigant “advocates” claims or defenses previously pleaded. (*Id.*) Therefore, sanctions may be awarded where an attorney/litigant argues positions contained in earlier-filed papers after learning such positions are without evidentiary support or legal merit.

² When awarding sanctions, the court is required to describe the sanctionable conduct and explain the basis for the sanction imposed. (CCP § 128.7(e). See also *Hopkins & Carley v. Gens* (2011) Cal.App.4th 1401, 1418.)

provide notice of hearing date and thus did not satisfy “safe harbor” requirement]; *J.N. v. Goldberg* (2026) 120 Cal.App.5th 544, 549-550.) No sanctions can be imposed under a motion filed before expiration of the 21-day “safe harbor” no matter how improper the conduct sought. (*Goodstone v. Southwest Airlines Co.* (1998) 63 Cal.App.4th 406, 418-419.) As Stater Bros. failed to technically comply with the safe harbor requirements, the motion is denied.

Besides, on the merits, Stater Bros. motion is premised on the argument that Plaintiff’s deposition testimony is so contradictory that no reasonable attorney could continue to maintain her claims. The existence of contradictory testimony does not automatically render claims objectively frivolous under section 128.7. Rather, it presents the type of factual dispute that belongs at summary judgment or trial, where the trier of fact can assess credibility, weigh conflicting evidence, and determine what actually happened.

Finally, Plaintiff requests \$5,600 in sanctions against Stater Bros. and its counsel, arguing the motion is frivolous. While Stater Bros. failed to comply with the procedural safe harbor requirement, the motion presented colorable arguments that, while ultimately unpersuasive, do not warrant counter-sanctions.